

the part of the court is essential to a final determination of the rights of the parties, the decree is interlocutory.” (*Bakewell v. Bakewell* (1942) 21 Cal.2d 224, 227 quoting *Lyon v. Goss* (1942) 19 Cal.2d 659.)

“It is well established that there can be but one judgment in an action as between the same parties and that is a judgment which determines all matters in controversy between them in the action.” (*Pastor v. Younis* (1965) 238 Cal.App.2d 259, 264.)

The Proposed Final Judgment submitted by Plaintiff does not meet the standards for a final judgment. There are several issues left unresolved and which would still require Court action. For example, the proposed final judgment notes that if the parties cannot agree on a Realtor to list and sell the Property that the Court shall appoint a Realtor upon ex parte application. (¶ 2.) Elsewhere, it notes that if the parties refuse to sign certain documents that the Court should “appoint an elisor” to sign on their behalf. (¶¶ 9, 10.)

The Proposed Final Judgment does not represent a “final determination of the rights of the parties,” but instead appears to be a proposed roadmap for proceeding with the sale of the Property which will ultimately result in a final judgment once the Property is sold and the assets are available for distribution.

Actions for partition are governed by extensive procedures set out in Code of Civil Procedure section 872.010, et seq. “If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property.” (Code Civ. Pro., §872.720(a).) Once that judgment is entered, further determinations must be made through additional interlocutory judgments, including whether to physically divide the property or achieve partition through sale (Code Civ. Pro. § 872.820, *Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 597), and appointment a referee or a receiver to administer the sale of the property. (Code Civ. Pro., §873.010.)

While this Court’s Interlocutory Judgment determined the interests of the parties, it did not determine the method of partition. It indicated that the “manner of partition” would be determined after the parties had an opportunity “to meet and confer with each other as to whether Defendant will purchase Plaintiff’s interest or whether the property will be ordered sold on the open market....”

Based on the papers, it appears clear that the Parties cannot agree on a procedure for moving forward. It is clear, however, that no real efforts have been made toward Defendant purchasing Plaintiff’s interest in the Property. As such the Court agrees that this matter should move swiftly toward the sale of the Property so the case can be resolved in its entirety and a final judgment issue. As such, the Court is inclined to appoint a referee to proceed with the sale of the Property.

The Court notes that there is a CMC scheduled for April 15, 2026. The Parties and the Court can discuss the additional steps and procedures for efficiently selling the Property and resolving this matter at that CMC. The Parties should meet and confer beforehand to determine if they can agree to a referee. If not, the Court will move forward with appointing one.

Conclusion

Plaintiff’s Motion for Entry of Final Judgment is **denied**. The parties should be prepared to discuss the procedures for moving forward with the sale at the CMC.

7. 9:00 AM CASE NUMBER: MSC22-00438

CASE NAME: GODFREY VS. DENARD

*HEARING ON MOTION IN RE: TO SET ASIDE ORDER UNDER CCP 473 (B)

FILED BY: GODFREY, LAVON

TENTATIVE RULING:

Denied. Plaintiff has set forth no valid legal basis for his failure to follow **published and established** procedures for Law and Motion matters in this Court.

Law & Motion

Add On

8. 9:00 AM CASE NUMBER: C22-00922

CASE NAME: TREK HOLDINGS VS. CAREPATROL FRANCHISE

HEARING ON SUMMARY MOTION JUDGMENT/ADJUDICATION

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant CarePatrol Franchise Systems, LLC and Defendant Best Life Brands, LLC (collectively, "Defendants") Motion for Summary Judgment or in the alternative Summary Adjudication ("Motion"). The Motion relates to Plaintiff Trek Holdings LLC and Plaintiff Kevin Pickolick (collectively, "Plaintiffs")'s First Amended Complaint for (1) breach of written contract; (2) tortious interference with contract and economic relations; and (3) negligent interference with contracts and economic relations.

As a threshold issue, Defendants' notice is fatally defective.

In order to move for summary adjudication, the party moving must specify in its notice of motion and motion the claim, causes of action, or issues it is moving on. (California Rules of Court, rule 3.1350 (b).) A notice of motion must state the "grounds upon which it will be made." (*Homestead Savings v. Superior Court* (1986) 179 Cal.App.3d 494, 499 [citing Code Civ. Proc. § 1010].) The court has no power to adjudicate others. (*Maryland Cas. Co. v. Reeder* (1990) 221 Cal.App.3d 961, 974 n. 4; *Homestead, supra*, 179 Cal. App. 3d at p. 499.) A party does not waive any requirement of notice for a subissue that was not set forth in the notice by responding to the argument. (*Homestead, supra*, 179 Cal.App.3d at p. 499.) "In the case of a motion for summary adjudication, the motion must at least identify the specific issues or subissues to be adjudicated." (*Id.*)

"A motion for summary adjudication tenders only those issues or causes of action specified in the notice of motion, and may only be granted as to the matters thus specified." (*Schmidlin v. City of Palo Alto* (2007) 157 Cal.App.4th 728, 743-744.) "The movant must 'state[] specifically in the notice of motion and ... repeat[], verbatim, in the separate statement of undisputed material facts,' 'the specific cause of action, affirmative defense, claims for damages, or issues of duty' as to which summary adjudication is sought." (*Id.* at 744.)